

Model Child Non-Access and Commercial Readability Act

Section 1. Legislative Findings

The Legislature finds that:

1. Children have no lawful role as users, viewers, traffic sources, engagement units, demand signals, training populations, or market inputs for adult sexual-market products.
2. The original prevention rule for children was non-access: physical separation, age barriers, friction, detectability, and exclusion from adult sexual-market environments.
3. Internet-connected adult sexual-market products altered that condition by making sexual content, sexual search, sexual recommendation, sexual novelty, and sexual reward-loop exposure available through private, scalable, device-agnostic access.
4. Adult sexual-market actors and affiliated commercial actors may collect, infer, measure, rank, route, recommend, retain, segment, study, or monetize user behavior for commercial purposes.
5. An actor that can commercially read, shape, or monetize aggregate demand cannot simultaneously claim that users are too private, anonymous, untracked, unverifiable, or technically unreadable to prevent child access.
6. Privacy shall not be used as market immunity. Child privacy exists to protect children from commercial sexual access and exploitation, not to excuse adult sexual-market actors from proving child exclusion before exposure.
7. Prevention after market capture is inadequate. The legal duty is non-access at entry.

Section 2. Definitions

For purposes of this Act:

“Adult sexual-market actor” means any person or entity that owns, operates, finances, distributes, hosts, indexes, ranks, recommends, advertises, monetizes, processes payment for, drives traffic to, licenses, affiliates with, or materially profits from an adult sexual-market product.

“Adult sexual-market product” means any website, platform, application, interface, content library, search tool, recommendation system, subscription service, advertising system, affiliate system, or monetized digital environment that provides, organizes, promotes, or profits from sexual content, sexually explicit material, pornography, sexualized performance, or material harmful to minors.

“Child” means a person under eighteen years of age.

“Child-reachable access pathway” means any access condition under which a child can reach, view, search, receive, be recommended, be exposed to, interact with, or be commercially counted in connection with an adult sexual-market product.

“Commercial readability” means the ability to collect, infer, analyze, rank, route, recommend, target, retain, segment, measure, test, monetize, or study user behavior, traffic, demand, engagement, conversion, retention, category movement, search behavior, or aggregate use patterns.

“Effective child exclusion” means a pre-access method that prevents children from reaching an adult sexual-market product before exposure and that does not rely on self-attestation, generic disclaimers, after-the-fact removal, parental blame, school blame, device neutrality, platform neutrality, or lack of actual knowledge.

Section 3. Child Non-Access Duty

An adult sexual-market actor shall not make an adult sexual-market product available through a child-reachable access pathway.

An adult sexual-market actor has an affirmative duty to prove effective child exclusion before exposure.

The duty attaches before a child views, searches, receives, is recommended, interacts with, or is commercially counted in connection with an adult sexual-market product.

Section 4. Burden Inversion

In any civil, administrative, regulatory, or enforcement proceeding, an adult sexual-market product made available through the internet shall be presumed child-reachable unless the adult sexual-market actor proves effective child exclusion before exposure.

The burden shall not rest on the child, parent, school, state agency, researcher, regulator, or injured class to prove individualized child access where the adult sexual-market actor possessed commercial readability of aggregate demand, traffic, engagement, or use.

Commercial readability creates a corresponding legal duty of child non-access.

Section 5. Prohibited Defenses

An adult sexual-market actor may not rely on any of the following as a complete defense to child-reachable access:

1. user privacy;
2. anonymity;
3. de-identification;
4. lack of actual knowledge of a specific child;
5. user self-attestation;
6. parental fault;

7. school fault;
8. device neutrality;
9. platform neutrality;
10. third-party traffic referral;
11. technological burden;
12. adult speech rights;
13. after-the-fact moderation;
14. reporting systems;
15. deterrence messaging;
16. content removal after exposure;
17. industry safety partnership;
18. aggregate-data claims that prevent identification of the harmed child class while preserving monetization of the same population.

Section 6. Privacy Protection

An adult sexual-market actor shall not retain, sell, disclose, transfer, or reuse identity, age-verification, biometric, device, transactional, or behavioral data collected for age verification except as strictly necessary to prove child exclusion and comply with law.

Age-verification data shall not be used for advertising, recommendation, profiling, market research, affiliate tracking, product optimization, demand analysis, or any commercial purpose unrelated to child exclusion.

A covered actor that claims privacy risk as a reason not to verify age must prove that it has adopted a less-invasive method that still achieves effective child exclusion before exposure.

Section 7. Monetizer Disqualification

An adult sexual-market actor that profits from an adult sexual-market product shall not control, own, govern, certify, audit, finance, or set the standards for the child-protection, age-assurance, prevention, intervention, research, or safety regime used to regulate that product.

A covered actor may comply with neutral legal standards, but it may not convert its child-access duty into authority over the prevention or intervention system.

Section 8. Non-Delegation of Responsibility

An adult sexual-market actor may not satisfy this Act by shifting responsibility to parents, schools, libraries, device manufacturers, operating systems, app stores, internet service providers, search engines, social media platforms, or users unless the actor proves that children were effectively excluded before exposure to the adult sexual-market product.

Nothing in this section prevents additional duties being imposed on other access-layer actors. Such additional duties do not reduce the adult sexual-market actor's independent duty of non-access.

Section 9. Enforcement

A violation of this Act constitutes unlawful child-access facilitation.

The Attorney General may bring an action for injunctive relief, civil penalties, disgorgement, statutory damages, auditing, compliance monitoring, and any other relief necessary to restore child non-access.

A parent, guardian, or person harmed as a child by a child-reachable access pathway may bring a civil action for statutory damages, actual damages, injunctive relief, attorney's fees, and costs.

Each child exposure, each failure to prove effective child exclusion, and each prohibited commercial use of age-verification data constitutes a separate violation.

Section 10. Construction

This Act shall be construed to protect children from adult sexual-market access at entry.

Nothing in this Act shall be construed to require children to prove individualized market readability where the covered actor used aggregate readability for commercial benefit.

Nothing in this Act shall be construed to authorize censorship of lawful adult speech for adults who are effectively verified as adults.

The purpose of this Act is child non-access, not adult-market safety branding, intervention-market expansion, or monetizer control over prevention.